

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 896

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO SPECIAL PROCEEDINGS; AMENDING TITLE 7, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 17, TITLE 7, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING COMPLIANCE WITH THE LAW; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 7, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 17, Title 7, Idaho Code, and to read as follows:

CHAPTER 17
COMPLIANCE WITH LAW

7-1701. LEGISLATIVE FINDINGS AND INTENT. The legislature finds that elite impunity has become a serious problem in the United States. The legislature further finds that public servants who act like they are above the law bring all law into disrepute. In enacting this chapter, it is the intent of the legislature to provide consequences for public servants who disregard the law.

7-1702. DEFINITIONS. As used in this chapter:

(1) "Prohibition" means a proscription imposed by an Idaho statute on a public officer, public employee, or public entity that is directly applicable to the public officer, public employee, or public entity in their capacity as a public officer, public employee, or public entity.

(2) "Public employee" means a person employed by a public entity or public officer.

(3) "Public entity" means:

(a) Any agency, board, bureau, department, division, institution, or office of the state but shall not include the legislative or judicial branches of government;

(b) Any public school, public charter school, or school district in the state;

(c) Any independent public body corporate and politic in the state;

(d) Any political subdivision of the state; or

(e) Any other public organization created by the constitution of the state of Idaho or an Idaho statute.

(4) "Public officer" means a person elected or appointed to an office created by the constitution of the state of Idaho or an Idaho statute but shall not include an officer in the legislative or judicial branches of government.

7-1703. VIOLATION OF THE LAW -- REFERRAL TO ATTORNEY GENERAL. The governor, president pro tempore of the senate, or speaker of the house of rep-

1 representatives may refer to the attorney general any potential violation of a
 2 prohibition as defined in section 7-1702, Idaho Code. A chairman of a board
 3 of county commissioners may refer to the attorney general any potential vio-
 4 lation of a prohibition as defined in section 7-1702, Idaho Code, related to
 5 any taxing district located within the county or any public officer or public
 6 employee of such taxing district.

7 7-1704. NOTICE -- OPPORTUNITY TO CURE. (1) Upon a referral provided
 8 pursuant to section 7-1703, Idaho Code, if the attorney general has reason
 9 to believe that the public officer, public employee, or public entity has
 10 violated a prohibition as defined in section 7-1702, Idaho Code, the attor-
 11 ney general shall give notice of the alleged violation to the public officer,
 12 public employee, or public entity so referred.

13 (2) Upon receipt of notice provided pursuant to subsection (1) of this
 14 section, a public officer, public employee, or public entity shall have
 15 fourteen (14) days to respond to the attorney general, either:

16 (a) Acknowledging the violation and stating an intent to cure the vio-
 17 lation; or

18 (b) Denying that the alleged violation has occurred.

19 (3) Failure by a public officer, public employee, or public entity to
 20 respond to notice provided pursuant to subsection (1) of this section shall
 21 be treated as a denial.

22 (4) If a public officer, public employee, or public entity acknowledges
 23 a violation pursuant to subsection (2) (a) of this section, such officer, em-
 24 ployee, or entity shall have fourteen (14) days from the date of the acknowl-
 25 edgment to cure the violation by ceasing to violate the relevant prohibi-
 26 tion.

27 (5) A cure pursuant to this section shall act as a bar to filing an ac-
 28 tion pursuant to section 7-1705, Idaho Code.

29 7-1705. ACTION TO ENFORCE THE LAW. (1) If a public officer, public
 30 employee, or public entity, after receiving notice of an alleged violation
 31 pursuant to section 7-1704, Idaho Code, denies that the alleged violation
 32 has occurred, fails to respond to the notice by the required time, or fails to
 33 cure the alleged violation by the required time, the attorney general may, at
 34 the attorney general's discretion, file an action to enforce the law against
 35 such officer, employee, or entity.

36 (2) The action authorized by this section may be filed only if the law
 37 the attorney general seeks to enforce does not establish a penalty for non-
 38 compliance or another enforcement mechanism.

39 7-1706. ORDER TO COMPLY -- ATTORNEY'S FEES. (1) In an action filed pur-
 40 suant to section 7-1705, Idaho Code, a court of competent jurisdiction shall
 41 issue an order to comply with the law if the attorney general proves by a pre-
 42 ponderance of the evidence that a public officer, public employee, or public
 43 entity violated a prohibition as defined in section 7-1702, Idaho Code. The
 44 order shall identify by name the specific persons responsible for ensuring
 45 compliance with the order.

1 (2) A person named in an order issued pursuant to subsection (1) of this
2 section who fails to comply with the order shall be guilty of contempt and
3 subject to punishment as provided by law.

4 (3) The prevailing party in an action filed pursuant to section 7-1705,
5 Idaho Code, shall be entitled to reasonable attorney's fees.

6 7-1707. ACTION TO DISQUALIFY FROM PUBLIC OFFICE OR PUBLIC EMPLOY-
7 MENT. (1) In addition to the action provided in section 7-1705, Idaho Code,
8 the attorney general may, at the attorney general's discretion, file an ac-
9 tion seeking to disqualify from public office or public employment a public
10 officer or public employee who willfully violates a prohibition as defined
11 in section 7-1702, Idaho Code. The action provided for in this section shall
12 not be filed against a state officer who is subject to election.

13 (2) In an action filed pursuant to this section, a court of competent
14 jurisdiction shall issue an order disqualifying a person from public office
15 or public employment for a period of up to five (5) years if the attorney gen-
16 eral proves by clear and convincing evidence that the person willfully vio-
17 lated a prohibition as defined in section 7-1702, Idaho Code.

18 (3) An action to disqualify may be filed only if an action to enforce
19 the law has been filed pursuant to section 7-1705, Idaho Code, for the same
20 alleged violation.

21 (4) The prevailing party in an action filed pursuant to this section
22 shall be entitled to reasonable attorney's fees.

23 7-1708. ALTERNATE COUNSEL. (1) A public officer, public employee, or
24 public entity that would otherwise be entitled to legal representation by
25 the office of the attorney general may retain other counsel if an action au-
26 thorized pursuant to this chapter is filed against such officer, employee,
27 or entity.

28 (2) Alternate counsel retained pursuant to this section shall be com-
29 pensated with funds appropriated to the public officer or public entity or to
30 the employer of the public employee.

31 SECTION 2. An emergency existing therefor, which emergency is hereby
32 declared to exist, this act shall be in full force and effect on and after its
33 passage and approval.